

COMMERCIAL AGREEMENT (Excerpted Clauses)

1. During the Term of this Agreement, except as otherwise permitted by this Section 3(a)(v), VS agrees that it shall not enter into the same or substantially similar Commitments with any other company or entity which performs clinical research services the same or similar to those provided by PPD or any PPD affiliate (collectively, "PPD Competitor"), nor shall VS provide preferred pricing to a PPD Competitor which is better than that provided by VS hereunder to PPD.

2. Manufacturer shall furnish to Customer certificates of insurance (electronic is acceptable), evidencing the required insurance coverage, upon execution of this Agreement and annually, thereafter. Automobile and Truck Liability Insurance: \$2,000,000 combined single limit for bodily injury and property damage arising out of all owned, non- owned and hired vehicles, including coverage for all automotive and truck equipment used in the performance of this Agreement and including the loading and unloading of same. All insurance carriers shall have a minimum of "A-" A.M. Best rating. To the extent of the liabilities assumed by Manufacturer under this Agreement, such insurance policies of Manufacturer shall be primary and non-contributing with respect to any other similar insurance policies available to Customer or its Affiliates. The insurance required under this Section 11 shall be written for not less than any limits of liability specified herein or as required by applicable Law, whichever is greater. Commercial general liability insurance with the following limits and forms/endorsements:

Each Occurrence: \$2,000,000 (i) Occurrence form including premises and operations coverage, property damage, liability, personal injury coverage, products and completed operations coverage, and transit. (ii) To the extent of Manufacturer's indemnification obligations, Customer and its Affiliates shall be additional insureds via ISO form CG20101185 or its equivalent. During the Term, Manufacturer shall self-insure or shall provide and maintain such insurance coverage, in minimum types and amounts as described below in this Section 11. Any and all deductibles or retentions for such insurance policies shall be assumed by, for the account of, and at Manufacturer's sole risk. Umbrella (excess) liability coverage in an amount not less than \$3,000,000 per occurrence and in the aggregate. Manufacturer shall have the right to provide the total limits required by any combination of self-insurance, primary and umbrella/excess coverage; said insurance to include the following: (a) Insurance for liability under the workers' compensation or occupational disease Laws of any state of the United States (or be a qualified self-insurer in those states of the United States) or otherwise applicable with respect to Persons performing the services and employer's liability insurance covering all claims by or in respect to the employees of Manufacturer, providing: (i) Coverage for the statutory limits of all claims under the applicable State Workers' Compensation Act or Acts. If a Facility Addendum will result in exposures under the U.S. Longshore and Harbor Workers' Compensation Act and its amendments (work dockside or on water), the Jones Act (involving seamen, masters and crew of vessels) or the Federal Employers' Liability Act (railroad exposure), coverage shall be extended to include insurance coverages mandated thereby; (ii) Employer's liability insurance with a limit of not less than \$1,000,000; (iii) Manufacturer warrants that all of its employees involved in this Agreement are covered by statutory workers' compensation; and -65-

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(iv) Where allowed by Applicable Law, Customer and its Affiliates shall be provided a waiver of subrogation, except for losses due to the sole negligence of Manufacturer.

3. 13. WARRANTY AND LIABILITY

13.1 Molson Coors warrants that on delivery the Products will be substantially free from defects in materials and workmanship.

13.2 Molson Coors shall have no liability for breach of the warranty at Condition 13.1 unless:

13.2.1 it is notified to Molson Coors within 24 hours of delivery or, if the defect would not be apparent on reasonable inspection on

delivery, within 5 days of delivery; and

13.2.2 Molson Coors has been given a suitable opportunity to inspect the allegedly defective Products.

13.3 The Customer shall give Molson Coors a reasonable opportunity to remedy any defects for which Molson Coors is potentially liable

before incurring any losses, damages, liabilities, charges, costs, claims or expenses and the Customer shall promptly provide written

evidence of (i) any claims for which it is alleged Molson Coors is liable and (ii) the steps taken by the Customer to mitigate any alleged

loss. In the absence of full compliance with this Condition 13.3 Molson Coors shall have no liability to the Customer for any breach of

the warranty given in Condition 13.1.

13.4 Nothing in these Conditions shall limit or exclude either Party's liability for death or personal injury caused by its negligence, for fraud or fraudulent misrepresentation, for breach of the terms implied by section 12 of the Sale of Goods Act 1979, arising in respect of a defective Product by virtue of the Consumer Protection Act 1987, or for any other matter for which it would be unlawful for it to limit or exclude its liability. Any explicit or implicit statement in these Conditions which may be construed as an attempt to exclude or limit liability shall in all cases be without prejudice to this Condition 13.4.

13.5 Subject to Condition 13.4, Molson Coors accepts no liability arising from or in connection with any Contract, whether for negligence, breach of contract, breach of statutory duty, misrepresentation or otherwise for:

13.5.1 loss or damage incurred by the Customer as a result of third party claims;

13.5.2 loss of actual or anticipated profits;

13.5.3 loss of business opportunity;

13.5.4 loss of anticipated savings;

13.5.5 loss of goodwill; or

13.5.6 any indirect, special or consequential loss howsoever caused.

13.6 Subject to Condition 13.4, the total aggregate liability of Molson Coors arising from or in connection with any Contract, whether for negligence, breach of contract, breach of statutory duty, misrepresentation or otherwise, shall be limited to the greater of (i) £1000; or (ii) 125% of the Price (exclusive of VAT, duty and less the benefit of any discount) paid or payable by the Customer pursuant to the Contract.

4. Zogenix will have the right, upon reasonable prior written notice and during Distributor's regular business hours, to audit Distributor's and its Affiliates' books and records by an independent certified public accounting firm of recognized international standing, and Distributor shall ensure that Zogenix has the right to audit its Sub-distributors' and subcontractors' books and records, to investigate potential violations of any of the representations, warranties or covenants in this Section 10.2, the FCPA or other Applicable Laws or Distributor's compliance policies. Inspections conducted under this Section 7.5 shall be at the expense of Zogenix, unless a variation or error producing an underpayment in amounts payable exceeding [***] of the amount paid for a period covered by the inspection is established, in which case all reasonable costs relating to the inspection for such period shall be paid by Distributor. Such inspections may be made no more than once each Fiscal Year (unless an audit or inspection reveals a material inaccuracy in reports made under this Agreement, in which case it may be repeated within such Fiscal Year), and during normal business hours, with reasonable efforts to minimize disruption of Distributor's normal business activities. Upon reasonable prior written notice, Distributor shall permit an independent, certified public accountant selected by Zogenix and reasonably acceptable to Distributor, which acceptance will not be unreasonably withheld or delayed, to audit or inspect those books or records of Distributor and its Affiliates and Sub-distributors that relate to Net Sales for the sole purpose of verifying: (a) the payments due hereunder and payments due under the Supply Agreement; (b) the withholding taxes, if any, required by Applicable Laws to be withheld; and (c) Distributor's compliance with Sections 10.1 and 10.2. Such accountant will disclose to Zogenix only the amount and accuracy of payments reported and actually paid or otherwise payable under this Agreement or the Supply Agreement, and will send a copy of the report to Distributor at the same time it is sent to Zogenix. Prompt adjustments (including interest under Section 7.6 for underpaid amounts) shall be made by the Parties to reflect the results of such audit. Such records shall be subject to inspection in accordance with Section 7.5. Such audit may be made no more than once each Fiscal Year (unless an audit reveals a violation under this Agreement, in which case an additional audit may be conducted within such Fiscal Year); Not more than once per Fiscal Year or as otherwise agreed by the Parties, and subject to the terms of the applicable agreement between Zogenix and its Third Party manufacturers, Zogenix shall, at Distributor's request, conduct GMP audits of the Third Party manufacturers and, if applicable, exercise such other audit rights that Zogenix may have under such agreements, and shall disclose to Distributor the results of such audits.

5. Individual grants Lifeway together with its affiliates, subsidiaries, parent companies and their representatives and employees have an unlimited, perpetual, non-exclusive, worldwide and, except as set forth in Section 9, royalty-free, right to use, reuse, publish, reproduce, perform, copy, create derivative

works, exhibit, broadcast, and display throughout the world the name, image and likeness of Individual in Marketing Materials (as defined below) in connection with marketing, advertising or otherwise promoting the Lifeway products and/or services and for historical reference and display purposes and other internal purposes, including without limitation, internal sales meetings.

6. E. Except as set forth in paragraphs 9(a) through 9(d) inclusive of this agreement, with respect to its EDP services or other work provided under this agreement, VIP makes no warranties, express or implied, including, but not limited to, implied warranties of merchantability and fitness for a particular purpose except as set forth in paragraphs 9(a) through 9(d) inclusive of this agreement, VIP does not warrant that the services shall meet BNL's requirements or that the services shall be uninterrupted or error-free.

7. This Agreement is entered into in the State of Texas and shall be governed, interpreted and construed in accordance with the laws of the State of Texas without regard to the conflicts of laws provisions thereof.